

**IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC
OF SRI LANKA**

In the matter of an Appeal under Section
331 of the Code of Criminal Procedure Act

The Democratic Socialist Republic of
Sri Lanka.

COMPLAINANT

Court of Appeal CA Case No :
HCC/272/2019

HC of Panadura Case No.
HC/3030/2013

Vs.

01. Sathruwange Sudath Jayantha Silva
02. Ranasinghage Janaka Perera
03. Boloknknage Dinusha Udara
 Boloknkna (Deceased)
04. Wellage Kapila Gayan de Silva

ACCUSED

AND NOW BETWEEN

Sathruwange Sudath Jayantha Silva

ACCUSED-APPELLANT

Vs.

The Hon. Attorney General,
Hon. Attorney General's Department,
Colombo 12.

COMPLAINANT-RESPONDENT

Before: **Hon Justice B. Sasi Mahendran, J.**
 Hon Justice Amal Ranaraja. J

Counsel : Sandeepani Wijesooriya for the Accused-Appellant.
 Shanil Kularatne, ASG for the Respondent.

Written : 07.12.2021 (by the Accused – Appellant)
Submission 27.07.23 (by the Respondent)
On

Argued On: 05.05.2026

Judgment On: 25.06.2026

JUDGEMENT

B. Sasi Mahendran, J.

The Accused-Appellant (hereinafter referred to as "the Appellant") along with three others were indicted before the High Court of Panadura on charges of conspiracy to murder M. Ranjith Sudarshana Salgadu (hereinafter referred to as the Deceased 1), punishable under Sections 113A read with 102 and 296 of the Penal Code, the murders of M. Ranjith Sudarshana Salgadu and M. Sarath Shelton Salgadu (hereinafter referred to as the Deceased 2), punishable under Sections 102 and 296 of the Penal Code, and the attempted murder of Tikiriyadura Lalitha Padmini Silva, punishable under Section 300 of the Penal Code.

At the conclusion of the prosecution case, the learned High Court Judge acquitted all the other 2nd, 4th and the 3rd accused (who is dead and gone) except the 1st Appellant on the ground that there was insufficient evidence against them.

Upon conclusion of the trial, the Learned High Court Judge, by judgment dated 05.09.2019, found the Appellant guilty of the charge and imposed the death sentence.

Being dissatisfied with both the conviction and the sentence imposed by the learned High Court Judge, the appellant has preferred an appeal before this Court articulating the following grounds in support of his challenge.

- 1) the Learned High Court Judge failed to consider the inconsistencies in the evidence presented by the prosecution
- 2) the Learned High Court Judge failed to consider the address by the defence
- 3) the Learned High Court Judge failed to consider the weaknesses and the incredible nature of the evidence for the prosecution
- 4) the judgment is contrary to the evidence adduced.

It should be noted that there were no eyewitnesses to the incident, and the prosecution case was based entirely on circumstantial evidence. Accordingly, it is necessary to consider the established principles governing the evaluation of cases found on circumstantial evidence.

In *King v. Abeywickrama*, 44 NLR 254, Soertsz J remarked thus:

“In order to base a conviction on circumstantial evidence, the Jury must be satisfied that the evidence was consistent with the guilt of the accused and inconsistent with any reasonable hypothesis of this innocence.”

In *King v. Appuhamy*, 46 NLR 128, Kueneman J held thus:

“in order to justify the inference of guilt from purely circumstantial evidence, the inculpatory facts must be incompatible with the innocence of the

accused and incapable of explanation upon any other reasonable-hypothesis the that of his guilt.”

In **Podisingho v. King** 53 NLR 49, Dias J remarked thus:

“That in a case of circumstantial evidence it is the duty of the trial Judge to tell the Jury that such evidence must be totally inconsistent with the innocence of the accused and must only be consistent with his guilt.”

In the case of **Attorney General v. Potta Naufer & others** [2007] 2 SLR 144, the court held that:

“When relying on circumstantial evidence to establish the charge of conspiracy to commit murder and the charge of murder, the proved items of circumstantial evidence when taken together must irresistibly point towards the only inference that the accused committed the offence”.

In the case of **Sudu Hakuruge Jamis and One other v. The Attorney General**, CA 204/2010, decided on 13.11.2013, Sisira De Abrew, J held;

“Applying the principles laid down in the above judicial decisions, I hold that in a case of circumstantial evidence if the Court is going to arrive at a conclusion that the accused is guilty of the offence, such an inference must be the one and only irresistible and inescapable conclusion that the accused himself committed the crime. Further, I hold that if the proved facts are not consistent with the guilt of the accused, he must be acquitted”

Having regard to the principles laid down in the above judicial decisions, I hold that in a case of circumstantial evidence, if an inference of guilt is to be drawn, such an inference must be the one and only irresistible and inescapable conclusion that the Appellant committed the offence. When the evidence adduced at the trial is considered, the one and only irresistible and inescapable conclusion that can be arrived at is that the Appellant committed the offence.

The prosecution case which gives rise to the conviction is as follows,

PW01, Lalitha Padmini Silva, the wife of Deceased 2, testified that on the day of the incident her husband was at home watching television. The witness further stated that she had known the Appellant for about 2–3 years. At around 3.00 p.m., upon hearing a noise, she and others proceeded to the rear of the house near the cemetery. The witness had observed the Appellant carrying a T-56 firearm and firing towards a pit in that area. She further stated that at that time there were three persons present with the Appellant, and the distance between her position and the incident scene was approximately 25 feet.

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The witness further stated that she instructed the others to run and Deceased 2 suggested going to the police station. She then stated that the Appellant approached from the front side of the house and fired towards her, PW 2, and her friend from a distance of about 60 feet. Fearing for their safety, she ran towards the police station. She later informed the police of the incident, and upon their arrival she came to know that Deceased 1 had died. The witness further stated that in her police statement she identified the Appellant and his brother as the assailants.

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During cross-examination, the witness admitted that she did not actually see the Appellant shoot her husband. According to her evidence, she only observed the Appellant firing in her direction but didn't get any injury.

PW2, Priyanka Kumari Salgado, the daughter of the deceased 2, testified that she heard a sound resembling a firecracker coming from that direction and thereafter observed the Appellant firing a weapon towards the ground. The witness stated that she knew the appellant at that time. At that time, the witness stated that the Appellant fired towards a pit located within the cemetery, although she did not see whether the deceased 1 was present in that area at the time. Thereafter, she observed the deceased running towards the front of the house. Upon seeing him run, PW1 shouted for everyone to flee. The deceased also instructed PW1 to run, following which PW1 pulled the witness along to go. As the witness was reluctant to leave, PW1 ran ahead. The witness thereafter concealed herself behind trees and observed the events from that location. She stated that the deceased was standing at the doorstep of the house, approximately ten feet away from the areca nut tree behind which she was hiding.

The witness further testified that the Appellant approached a mound and fired in the direction of PW1, causing PW1 to run. She stated that she did not see whether the deceased 2 was shot, as her attention was focused on PW1. Subsequently, she observed the deceased 2 lying on the ground near several trees adjacent to the toilet. The witness further stated that the deceased instructed her to go to the police station. Upon her return, she was informed that the deceased had been taken to hospital and that Deceased 1 had also died.

During cross-examination, the witness stated that she did not witness the attack on either of the deceased. She further stated that she later came to know that the first deceased had died at the cemetery.

PW3, Priyanka Kumari Salgadu, the sister of the deceased, corroborating the evidence of PW1, stated that upon hearing a noise she proceeded to the rear of the house with PW1, where she observed the Appellant coming from the direction of the cemetery with a firearm and moving towards the deceased's house. She further stated that PW1 then began to run, and she also fled with her child. While crossing the culvert, she heard the deceased shouting followed by gunshots. When she turned back, she saw the Appellant running away.

During cross-examination, she admitted that she did not witness the Appellant shooting PW1 or either of the deceased.

PW10, IP Karunathilake Bopitiya, stated that on 07.10.2004 at about 15.10 hours, he received information regarding a shooting incident. Upon arrival, he observed the 1st deceased near an areca nut tree, who stated that the Appellant was killing them.

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He further stated that he transported the injured to the hospital, noting that the deceased was bleeding at that time. He then proceeded to the cemetery area where he observed the 2nd deceased, who was unable to speak. He also noted the presence of a burial pit approximately 6 feet away from the 2nd deceased. The witness further stated that a magazine and 17 empty T-56 cartridge cases were recovered at the scene where the injured persons had fallen, and that they emitted the smell of gunpowder. Thereafter, two suspects were arrested, and the Appellant's statement was recorded. He further confirmed that the firearm linked to the incident had been recovered by the Kalutara North Police.

During cross-examination, the witness admitted that the relevant items had been sent to the Government Analyst in order to determine whether the firearm used in the incident had fired the empty cartridge recovered from the scene.

Before undertaking an analysis of the evidence concerning the declaration which was delivered by the deceased 2 to PW 10, it is essential to first examine the

manner in which our Courts have treated and accepted dying declarations as admissible evidence.

It is pertinent to reproduce the sentiments expressed by His Lordship H.N.G. Fernando J in *Queen v. Anthony Pillai* 68 CLW 57 with regard to how the Court could act on such dying declarations.

“The failure on the part of the Learned Trial Judge to caution the jury as to the risk of acting upon a dying declaration, being the statement of a person who is not a witness at the trial, and as to the need to consider with special care the question whether the statement could be accepted as true and accurate had resulted in a miscarriage of justice.”

This dictum was considered by His Lordship Sisira de Abrew J in *Gamini Mahaarachchi vs. The Attorney General*, CA 106/2002, Decided On 22.08.2007, held that:

“When a dying declaration is sought to be produced as an item of evidence against an accused person in a criminal trial. the Trial Judge or the jury as a case may be, must bear in mind on the following weakness;

- 1. Statement of the deceased person was not made under oath.*
- 2. Statement of the deceased person has not been tested by cross-examination vide King vs. Asirivadan Nadar 51 NLR 322 and Justin Pala vs. Queen 66 NLR409*
- 3. That the person who made the dying declaration is not a witness at the trial.*

As there are inherent weaknesses in a dying declaration which I have stated above, the trial Judge or the jury as a case may be, must be satisfied beyond reasonable doubt on the following matters;

- a. Whether the deceased in fact made such a statement*
- b. Whether the statement made by the deceased was true and accurate*

c. Whether the statement made by the deceased person could be accepted beyond reasonable doubt.

d. Whether the evidence of the witness who testifies about the dying declaration can be accepted beyond reasonable doubt.

e. Whether the witness is telling the truth.

f. Whether the deceased was able to speak at the time the alleged declaration was made.

g. Whether the deceased was able to identify the assailant.”

(Similar legal principles related to dying declarations were considered by His Lordship Sisira De Abrew in *Ranasinghe v Attorney-General* [2007], 1 S.L.R 218)

This was followed by His Lordship Achala Wengappuli J in *Korinvige Anura Lakshman Silva alias Pechchei alias Chooti vs. The Attorney General*, CA No. 288/2013 decided on 04.05.2018 and held that:

“It is the contention of the accused-appellant that the dying deposition on which he was convicted fails to satisfy these stringent tests, in view of the inconsistencies referred to above and therefore the prosecution has failed to prove its case against him.”

With these authorities in mind, it is pertinent to delve into the evidence of JMO.

PW 9, Dr Sivasubramaniam, the Judicial Medical Officer, testified that he conducted the post-mortem examination on the body of Deceased 2. He observed a total of thirteen firearm injuries, comprising both entry and exit wounds. The witness stated that the injuries were caused by a rifle-type firearm and shots had been fired from a distance exceeding three feet. He further opined that, considering the location and trajectory of the injuries, the shots were discharged from an elevated position.

At the conclusion of the prosecution case, the Appellant stated that he had no knowledge of the incident and was unable to speak on the matter.

Further, in written submissions, the Appellant contended that the Learned High Court Judge failed to properly analyse the evidence within the correct legal and rational framework and did not adequately consider whether the ingredients of each charge were proved beyond reasonable doubt.

I am mindful that all the charges in the present case are intrinsically connected to the allegation of conspiracy. The indictment charged the Appellant together with the other accused persons with the offence of conspiracy. However, after acquitting the 2nd and 4th accused, the learned High Court Judge failed to amend the indictment accordingly.

It is a well-established principle that the offence of conspiracy requires the participation of at least two persons acting in agreement. In these circumstances, it is pertinent to refer to Section 113A (1) of the Penal Code, which contemplates an agreement between two or more persons as an essential ingredient of the offence of conspiracy.

113A. (1) If two or more persons agree to commit or abet or act together with a common purpose for or in committing or abetting an offence, whether with or without any previous concert or deliberation, each of them is guilty of the offence of conspiracy to commit or abet that offence, as the case may be.

In the case of **King v Dharmasena** (1950) 51 NLR 48 at page 485, Lord Porter held that

“It is well-established law that if two persons are accused of conspiracy and one is acquitted the other must also escape condemnation. Two at least are required to commit the crime of conspiracy: one alone cannot do so. In the present case the only conspirators suggested were the two accused persons and there were no others known or unknown who might have participated in the crime. It is true that one conspirator may be tried and convicted in the absence of his companions in crime, R. v. Ahearne, but where two have been tried together so that the only possible verdict is either that both are or neither is guilty, an order for the retrial of one makes it imperative that

the other should also be retried. In their Lordships' opinion therefore if two persons are accused of a criminal conspiracy and convicted and on appeal one can be and is sent for retrial, the other should be sent at the same time retrial also upon that charge so that both may be convicted or acquitted together. In the present case in as much as Mrs. Seneviratne has been found not guilty of conspiracy, their Lordships think the proper course is to treat her acquittal as a disposal of the charge of conspiracy and involving the acquittal of the appellant also on that charge. The appeal against conviction on that count should accordingly be allowed."

In light of the foregoing authorities, I am mindful that the 2nd, 4th accused and 3rd accused (dead and gone) were acquitted of all the charges in the indictment. Consequently, the allegation of conspiracy could not be sustained against the Appellant in the absence of at least one other conspirator, as required by law and also the Learned High Court Judge had failed to analyse the charge of conspiracy. For the foregoing reasons, I acquit the Appellant of Charge No. 01 relating to conspiracy.

The central issue is whether the evidence adduced is sufficient to sustain an inference of guilt. Such an inference must be the sole, irresistible, and inescapable conclusion that the Appellant committed the offence. Where the evidence admits of any other reasonable interpretation consistent with innocence, the Appellant cannot be held guilty.

It must be noted that a dying declaration was made by Deceased No. 2 to PW 10, the police officer, wherein the deceased stated: “අමාරුයි සර, ජයන්ත අපිව මරලා දානවා කියලා කිව්වා.” The Appellant has not denied this piece of evidence. Furthermore, there is evidence establishing that the Appellant was armed with a firearm and discharging it, during which witnesses heard Deceased No. 2 screaming.

Having considered the above evidence, I find that the sole, irresistible, and inescapable conclusion is that the Appellant committed the murders of M. Ranjith Sudarshana Salgado and M. Sarath Shelton Salgado.

Accordingly, the prosecution has proved beyond reasonable doubt that the Appellant is guilty of these offences. I therefore convict the Appellant on the 2nd and 3rd counts of murder and acquit him of all remaining charges.

Appeal partly allowed.

JUDGE OF THE COURT OF APPEAL

Amal Ranaraja J,

I AGREE

JUDGE OF THE COURT OF APPEAL